

2023-P00053C

**AMENDMENT NO. 3
TO THE
ENERGY STORAGE SERVICES AGREEMENT
BETWEEN
CLEAN FLEXIBLE ENERGY LLC
AND
THE PUERTO RICO ELECTRIC POWER AUTHORITY**

This Amendment No. 3 to the Energy Storage Services Agreement for Salinas with contract number 2023-P00053 (this "Amendment") is entered into as of June 30, 2023 (the "Third Amendment Effective Date"), by and between the Puerto Rico Electric Power Authority ("PREPA") and Clean Flexible Energy LLC (the "Resource Provider"). PREPA and Resource Provider are herein individually referred to as a "Party" and collectively referred to as "Parties." All capitalized terms used in this Amendment and not otherwise defined shall have the meaning given to them in the Agreement (defined below).

RECITALS

WHEREAS, the Parties entered into that certain Energy Storage Services Agreement, dated August 26, 2022 (the "Agreement"), which provided two hundred forty (240) Days to reach the Closing Date;

WHEREAS, the Parties entered into that certain Amendment No. 1 to the ESSA, dated March 17, 2023 (the "First Amendment"), which provided for an additional sixty (60) Days to reach the Closing Date;

WHEREAS, the Parties entered into that certain Amendment No. 2 to the ESSA, dated June 15, 2023 (the "Second Amendment"), which provided until June 30, 2023 to reach the Closing Date; and

WHEREAS, the Parties now desire to amend certain provisions of the Agreement in accordance with the terms of this Amendment,

NOW, THEREFORE, in consideration of the mutual promises, covenants and agreements set forth herein and for other good and valuable consideration the receipt and sufficiency of which are hereby acknowledged, the Parties hereto, intending to be legally bound, hereby agree as follows:

SECTION A. Amendment to allow more time to achieve the Closing Date

Section 2.3(b) of the Agreement is hereby amended and restated in its entirety to read as follows:

If either (i) the Closing Date does not occur for any reason by July 10, 2023, or (ii) PREPA notifies Resource Provider of its intention either not to (A) accept the Best and Final Offer made by Resource Provider, or (B) issue a Best Interests Determination for the Project, in each case for any reason whatsoever, then, without limiting Section 15.2 (*No Discharge of Obligations*), this Agreement shall automatically terminate at midnight on such Day, provided that upon termination of this Agreement in accordance with this paragraph (b) of this Section 2.3, (i) neither Party shall incur any liability to the other Party, and (ii) PREPA shall return the Bid Security to Resource Provider unless Resource Provider has breached any of the Agreement Date Obligations in a material way and failed to cure such breach within ten (10) Business Days of the occurrence of such breach, in which case PREPA shall have the right to draw on the full face amount of the Bid Security.

SECTION B. Representations and Warranties

1. PREPA hereby represents and warrants to Resource Provider that: (a) the execution and delivery by PREPA of this Amendment, and the Amendment itself, (i) have been duly authorized by PREB, PREPA's Governing Board, and any other applicable PREPA governing body in accordance with applicable law, (ii) do not and will not require any additional internal or external consent or approval and (iii) do not and will not violate any provision of Act No. 83 of May 2, 1941, as amended, or its regulations, or any material indenture, contract or agreement to which it is a party or by which its properties may be bound; and (b) this Amendment is a legal, valid, and binding obligation of PREPA, enforceable against PREPA in accordance with its terms, except as may be limited by applicable bankruptcy, insolvency or similar laws affecting the enforcement of rights generally.
2. Resource Provider hereby represents and warrants to PREPA that: (a) the execution, delivery, and performance by Resource Provider of this Amendment (i) have been duly authorized, (ii) do not and will not require any additional internal consent or approval of Resource Provider and (iii) do not and will not violate any provision of Resource Provider's certificate of formation or operating agreement, or any material indenture, contract or agreement to which it is a party or by which it or its properties may be bound, or any law, ordinance, rule, regulation, order, writ, judgment, injunction, decree, determination or award presently in effect; and (b) this Amendment is a legal, valid and binding obligation of Resource Provider, enforceable against Resource Provider in accordance with its terms, except as may be limited by applicable bankruptcy, insolvency or similar laws affecting the enforcement of rights generally.

SECTION C. Miscellaneous

1. Information for Controller's Office. PREPA will charge all payments that it owes under the Agreement, as amended by this Amendment, to PREPA's budget account number 01-4042-54710-050-668-0000 and estimates that its costs under the Agreement will not exceed two billion four hundred fifty nine million five hundred forty two thousand six hundred fifty five dollars and fifteen cents (\$2,459,542,655.15). For the avoidance of doubt, the Parties have set out the expected account number and estimate of costs for informational purposes to satisfy the requirements of the Puerto Rico Controller. This paragraph does not bind the Parties or modify any other provision of the Agreement.
2. Headings. The headings in this Amendment are for reference only and do not affect the interpretation of this Amendment.
3. No Implied Waiver. This Amendment shall be limited precisely as written and does not modify any provisions of the Agreement except as specifically amended above. This Amendment shall not be deemed to be a consent granted pursuant to, or a waiver or modification of, any other term or condition of the Agreement, whether or not known to the Parties, or to prejudice any other right or rights which the Agreement may now have or have in the future.
4. Counterparts. This Amendment may be executed in any number of counterparts with the same effect as if both Parties had signed the same document. All counterparts shall be construed together and shall constitute one instrument.
5. Entire Agreement. The Parties intend the Agreement, as amended by this Amendment, as the final expression of their agreement and also as a complete and exclusive statement of the terms of their

agreement with respect to the subject matter thereof that supersedes all prior written and oral understandings between the Parties with respect thereto.

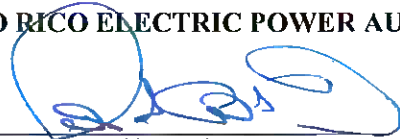
6. Governing Law. This Amendment shall be governed by, construed, and enforced in accordance with the Laws of the Commonwealth of Puerto Rico without regard to any contrary result required under applicable conflicts of laws rules. The Parties herein agree that all Disputes arising hereunder shall be resolved pursuant to Article 21 (*Dispute Resolution*) of the Agreement.

[Signatures appear on the following page.]



IN WITNESS WHEREOF, the Parties hereto have caused this Amendment to be duly executed by their respective officers as of the date first above written.

PUERTO RICO ELECTRIC POWER AUTHORITY

By: 

Name: Josue A. Colón Ortiz

Title: Executive Director

Tax ID

CLEAN FLEXIBLE ENERGY LLC BESS

By: 

Name: Jesus Bolinaga

Title: President

Tax ID: